Pine Valley Special Service District Meeting (PVSSD)
Minutes of the Meeting held On August 5, 2009

Attending Members: Mary Esther Putnam (Chair); Dall Winn; Spence Beckstrom; Jeff Gardner; John Nichols;
Also Present: Gerald Schiefer (Fire Chief); George Cropper (Treasurer); Beverly Udell (Secretary).
Guests: Guin Winn; Fred Pendleton; Laurett Winterton; LaVon Brooks; Valerie Knight; Glenn Knight; Sharron Northington; Fred Northington; Gail Vallone, Tony Vallone; Ian Savage
Absent: N/A

1. General Business:
a/b. Welcome – Meeting was opened by Mary Esther (Co-Chair) at 5:03 PM and the Pledge of Allegiance was said.
c. Minutes – The Minutes from July 8, 2009 were reviewed by each Board member. Dall motioned to accept the Minutes as written, Jeff seconded the motion and all were in favor.
d. Pine Valley Building Permits Reviewed: N/A
e. Mobile Homes and Trailers – We are zoned as a residential and agricultural community, not a mobile home or trailer park. Many residential communities have a special area where people can park their trailers or motor homes so that they are not on the streets or sticking out even on people's driveways or side yards. Mary Esther spoke with Kurt Gardner from the County who had previously tried to enforce the trailer and motor home problem. We now seem to have them all over the valley again. Some of the trailers and/or motor homes have people living in them. Many pull in their trailers in to Pine Valley in the spring and stay in living in them here until autumn. Someone lived in a trailer in the parking lot of the Brandin' Iron Steak House for almost a year. There is an exception to the zoning ordinance rule - if someone is in the process of building a home, they are allowed to park a trailer on their lot for a period of up to 1 year (while they are building their home) IF they have a permit from the County and also permission from the Pine Valley Special Service District. Mary Esther read a letter that she would like to see sent to the County Attorney's office concerning this growing problem (see letter). Dall shared that every single year the neighbors living next to him have a family reunion and they allow trailer parking on the property between the road and their fence (which is County property) for a period of 4-5 days. Since there are not any formal regulations regarding that expanse of County property in front of each house, someone can come and park in front of anyone's home, even without the owner's permission, for days and no one can do anything about it. Dall said that he also is in support of the letter being sent to the County Attorney. Sharon Northington spoke up and declared that she has a friend who comes first thing in the spring and stays until September each year. He lives in a motor home on her property. She feels that since it is her own private property that she should be allowed to do this. Sharon said that she moved to the country (i.e. Pine Valley) to be able to do what she wants to on her own property. Mary Esther spoke up and asked Sharron what would happen if everyone did that same thing. Jeff didn't feel he was in a position to comment since he hadn't yet had time to think about the issue. Spence said that the current laws go back to the 50's and 60's when people only lived in Pine Valley during the summer months – there was not any fulltime residents living here year-round. But he also added that times have now changed and of course now there are many fulltime residents. "We are not a trailer park", he added. He believes that it is an eyesore to have trailers and motor homes parked everywhere. Gerald said that he has had a home here for 20 years and agrees that trailers are an eyesore. He said that he remembers when Kurt Gardner had to go through and enforce the removal of trailers a few years back. He said that he himself had a niece that wanted to come and live on his property for a short time in a trailer, but he found out that it was not allowed. Beverly brought up that she believes that if someone lives on a property for over 30 days, that they have established residency on that property. It is no different than

if someone moved into an apartment building – once there for 30 days, they would need to be served with an eviction notice if the apartment owner wanted to get them out. Beverly also mention that even at the campsite they have rules about how long someone can camp at a site because of residency issues. George told that most of the properties in Pine Valley have restriction because of their septic tank size and that adding an additional home such as a trailer or motor home could cause issues with that. The properties are also zoned for single homes only, and that there are laws about having two residency homes on the same property that is normally only zoned for one. Fred added that there was a major problem with mobile homes and trailers on the 80's – it was a residency zoning issue. He will do some research on what exactly happened back then. Sharron said that she would like to see a copy of any regulations. Valerie Knight threw in that she feels that empty motor homes are the same eyesore as motor homes that have people living in them. Sharron again said that she feels that since we are in the country that anything should be allowed. That is why she moved up here. She feels that if someone wants to park a trailer here so that they can feel closer to "God's Earth" that they should be allowed. Tony Vallone mentioned that easement rules would apply on the County property areas between the street and private property boundaries. Gwen, who has lived in Pine Valley her whole life, said that she believes that motor homes and trailers are required to have some type of cover, shed or garage to cover them. Mary Esther said that the letter was just a draft. She plans to speak again with the County to see if there is a specific regulation. Glen Knight wanted to know if an ordinance needs to be put into place, who gets to vote on that? The answer is the County Commissioners. Beverly added that even though we live in the country, we still have to have rules. There are rules about fire restrictions, about animals, about fireworks, about permits for homes being built – there are rules to abide by even in the country.

f. Pine Valley Irrigation Request - Mary Esther brought forth and read another letter draft, this one directed towards the Pine Valley Irrigation Company (see letter). It was in regards to a $27,900 bill that we have received from them for fire hydrants that they replaced on Main Street in Pine Valley. These hydrants came in as part of the water line upgrade. Dall asked if we had contacted the County Attorney about the billing. We have gone back and forth verbally with the Irrigation Company, but to no avail. Dall has spoken to people in the Irrigation Company and it was their understanding at one point that the agreement was that the Irrigation Company would put hydrants in Pine Valley if the Special Service District agreed to maintain them. John said it would be like someone coming onto his property without his approval and changing the plumbing there, and then coming back and trying to charge him for that plumbing change. Jeff said that he would like to see a copy of a contract. Spence added that they didn't even consult us. Part of the problem seems to be that the old hydrants were outdated, and needed to be replaced with newer ones to bring them up to code. But the Fire Department and Board of the PVSSD all agree that if we were going to pay for new hydrants, it would be to put them in the area of Lloyd Canyon where there is a severe shortage of hydrants. Spence added another objection being the Irrigation Co. didn't even consult us first, but then presented us with a bill for $27,900. Gerald mentioned that as a Special Service District, our responsibilities are to cover the areas of fire, sewer and water – but since the Irrigation Co is a privately owned entity, we have not ever had any authority or say so where the water is concerned. Spence said that he would contact the County Attorney to see what his thoughts are. George was concerned that this could quickly become a legal issue. We would have a serious time paying for it. He feels that this should set precedence to what our legal responsibilities are towards hydrants, not only for this case, but also for the future.

Board Member Reports:

Mary Esther: She would like to see the issue of Impact fees revisited. Spence thought maybe someone on the Board wasn't interested in the possibility of pursuing the Impact fees being raised. Are we <u>all</u> in favor? Yes!

Spence: If we are going to be able to go after stimulus money for paving roads in Pine Valley, we would need to create another "district" for which to oversee the funds, as well as deciding which roads to be paved, etc. This "Improvement District" would comprise of the people who had property in the areas affected. Spence is proposing that the roads consisting of 4th West through 2nd East be paved.
Dall: Dall shared that we currently have close to 30 volunteers that donate their time to the Fire Department, plus 7 EMTs. Dall says that every single one of them are very near and dear to his heart. Dall feels that the Special Service District should find a way to somehow give back to the volunteers who give so much time. He is proposing that the Board vote to wave the $150 annual fee for the EMTs and fireman who volunteer. He said that guidelines would have to be in place, maybe such as a rule about how many volunteer hours need to be given each year in order to qualify for the wave of the fee. Dall feels that this would be just a small token, and that in reality he doesn't feel like we could do enough to show our gratitude. He has checked with both the Fire Chief and the Treasurer, and both feel that combined between all of the volunteers, it would only add up to a small amount and that the department would not be hurt by the loss of that revenue. * The new addition to the Fire Station should be completed by September 1. Should we have some type of open house or ribbon cutting during our September meeting?
Jeff: The County said that as far as our signatures for Building Permits, they are only looking for architectural input from us. Paved roads are not considered an architecturally in the flavor of Pine Valley. What about the possibility of using colored asphalt, which would make it more conducive to the country feel than just looking at the black asphalt. Jeff wanted to know if the County was looking for our input on this issue? Mary Esther though in that we don't really have any say so in regards to architectural comments on the houses either, we can only restrict height. * Gerald switched gears and added that the County is finally seeing that we don't have the ability to handle the extra large homes because of fire. The larger homes might not be allowed to be built up here much longer. John added that he feels the County says that they want our "input", but that is where they draw the line. Beverly asked what happened to the Pine Valley General Plan – does the County take that into consideration? The General Plan is kind of the same as our "input", whereas the County considers it, but that is about all.
John: There is a lot going on right now at the campgrounds. The new grounds and campsites will be opened for the 2010 season. They also plan on having a new concessionaire. Dall said that he has been in the new camp area – they have roads built, restrooms in place, picnic tables already set.
Fire Chief – See report. * Gerald said that we are definitely seeing much more need. We already have had more callouts that in 2008, and 2008 was double in the amount of callout from 2007.
h. Treasurer's Report – George: See attached report. * We have had 2 checks bounce from people who have used them to pay for their annual $150.00 fee.

2 - Public Comments: Gail Valone feels that it takes too long for an ambulance to get to Pine Valley, so she was wondering why we didn't have our own ambulance service. It was explained to her that we do not have the manpower to it takes to have an ambulance service 24/7. LaVon Brooks then got up and shared the story of her husband going into congestive heart failure and how the Pine Valley EMT's were there within minutes and that the ambulance from Enterprise also came quickly. She feels that her husband would not be alive without the help of the EMTs. She said that she has given a donation towards the EMTs and she feels that we should set up some type of slush fund where people can donate money towards the EMT program. Gerald then read a letter from the Winstons regarding Suzanne's fall and how very much he appreciated the help that came from the EMTs. * Fred gave an update on the Pine Valley annual fundraising dinner.

Spence moved for the meeting to adjourn at 6:35. All were in favor.

The next Board meeting will be held on Wednesday, October 7, 2008 at 5:00 P.M.